

7. PR0000906 In the Matter of Mimi Simmons

No appearances are required. The petition for instructions regarding the creation of a separate trust is granted as prayed. A proposed order has been submitted.

8. PR0000911 In the Matter of Victoria Frazer

No appearances are required. The petition for approval of compensation to court-appointed counsel is granted as prayed. A proposed order has been submitted.

9. PR0001015 In Re Donna Chamberlain

No appearances are permitted. This hearing date was improvidently left on calendar and is now removed from calendar.

10. PR0001069 In the Matter of Kathleen O'Neill-Starr

Appearances are required. Before the Court is Petitioner O'Neill-Starr's petition for instructions. The Court is favorably inclined to order the parties to attend mediation, with costs of the same to be paid by the trust, pursuant to Probate Code section 17206 and *Breslin v. Breslin* (2021) 62 Cal. App.5th 801, 806 ("The probate court has the power to order the parties into mediation."). The parties are hereby advised:

Mediation may result in a settlement of the matters that are the subject of this case and of any and all interested persons and parties interests therein. Settlement of the matter may result in an agreement for the distribution of assets of the above-referenced trust and of the estates of the settlors therein, however those assets may be held. Settlement of the matter may also result in an award of attorneys' fees to one or more parties under *Smith v. Szezyller* (2019) 31 Cal.App.5th 450, 242. Interested persons or parties who do not have counsel may attend the mediation and participate.

Non-participating persons or parties who receive notice of the date, time and place of the mediation may be bound by the terms of any agreement reached at mediation without further action by the Court or further hearing. Rights of trust beneficiaries or prospective beneficiaries may be lost or forfeited by the failure to participate in mediation. Participation in mediation is a prerequisite to an evidentiary hearing. By failing to participate in mediation, a person or party will waive their right to an evidentiary hearing.

Petitioner Kathleen O'Neill-Starr and Respondent Hugh Daniel O'Neill, III, shall meet and confer regarding selection of a mutually acceptable mediator. The Court continues this matter for review on the status of mediation to December 4, 2026, at 9:00 a.m., in Department 6, and continues to reserve jurisdiction over the pending motion. No later than two weeks prior to the continued hearing date, the parties shall submit a joint statement indicating the status regarding selection of a mediator.

11. PR0001072 In the Matter of Brigitte Fisher

No appearances are required. The petition for order confirming trust assets is granted as